DRAFT MINUTES – SUBJECT TO APPROVAL

Minutes of the Meeting of the Council of the Corporation of the Town of Ajax Held Electronically on Monday, November 22, 2021 at 7:00 p.m.

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		A. Khan
		L. Bower

1. Call to Order & Land Acknowledgement

Mayor Collier called the meeting to order at 7:00 p.m. Councillor Tyler Morin acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Adoption of the Minutes

Moved by: S. Lee
Seconded by: L. Bower

That the following minutes of previous Council meetings be adopted:

- Regular Meeting of October 18, 2021;
- Closed Session Meeting of October 18, 2021;
- Special Meeting of October 20, 2021;
- Closed Session Meeting of October 20, 2021;
- Special Meeting of October 25, 2021; and
- Closed Session Meeting of October 25, 2021

CARRIED

4. Question Period

Mayor Collier noted that members of the public were advised they could submit questions regarding the agenda to the Town Clerk up until noon on the day of the meeting. Alexander Harras, Manager of Legislative Services/Deputy Clerk, noted that one item of

correspondence had been received regarding item 9.1 on the meeting agenda.

5. Delegations and Presentations

5.1 Presentation: Accessibility Advisory Committee Annual Report to Council Proclamation: International Day of Persons with Disabilities 2021

Rosanne Purnwasie, 2021 Accessibility Advisory Committee Chair, presented a summary report of the activities of the Accessibility Advisory Committee for 2021. R. Purnwasie reviewed consultation highlights for the year, community feedback discussions related to accessibility innovation and barrier removal, virtual community events held during National AccessABILITY week, a partnership initiative with Treat Accessibly on inclusive trick-or-treating practices, and plans for 2022.

R. Purnwasie noted that the Committee, in partnership with the Ajax Public Library Board, will recognize International Day of Persons with Disabilities on December 3, and provided an overview of the virtual events.

Council Members asked if the Ajax Accessibility Advisory Committee was given an opportunity to provide comments to Metrolinx related to the Durham-Scarborough Bus Rapid Transit (BRT) project, and sought clarification regarding when the virtual events are running for International Day of Persons with Disabilities. R. Purnwasie responded to questions from Council Members.

Mayor Collier presented the proclamation certificate and proclaimed December 3, 2021 as International Day for Persons with Disabilities in the Town of Ajax. Mayor Collier thanked R. Purnwasie for her presentation and commended the Accessibility Advisory Committee for all of the hard work that they do.

5.2 Presentation: Heritage Advisory Committee Report to Council

Anderson Mendonca, 2021 Heritage Advisory Committee Chair, presented a summary of the activities of the Heritage Advisory Committee for 2021. A. Mendonca reviewed the purpose and mandate of the Committee, 2021 consultation highlights, public outreach and education, heritage properties, Ajax Archives, permit applications reviewed by the Committee, and the Heritage Minute video project.

Council Members asked questions regarding timelines associated with headstone repairs at Elizabeth Street Cemetery, opportunities to consult with Metrolinx on the transit expansion project, and future plans for the Heritage Minute Videos. A. Mendonca responded to questions from Council Members.

Council Members thanked A. Mendonca for his presentation and all members of the Committee for their contribution to preserving the history and heritage of Ajax.

5.3 Presentation: Makerspace Study

Dov Goldstein, Lord Cultural Resources, presented final recommendations for the Makerspace Development for the Ajax Public Library. D. Goldstein reviewed project process and timelines, consultation and engagement, key findings, final recommendations, programming zones, layout of the Makerspace at McLean branch, and next steps.

DRAFT

Council Members asked questions regarding Makerspace popularity and availability among other municipalities, methods to implement inclusivity and accessibility initiatives, projected capital costs, programming availability, operational responsibilities, annual operating costs, project timelines, potential partnership funding opportunities, and timelines associated with the business case. D. Goldstein and Sarah Vaisler, Chief Librarian and Executive Officer, responded to questions from Council Members.

On behalf of Council, Mayor Collier thanked D. Goldstein for his presentation.

5.4 **Presentation: Library Services Fall 2021 Update**

Doug Miller, Library Board Chair, presented a 2021 update to Council from the Ajax Public Library Board. D. Miller shared a service overview including details about locations, hours, card holders, and use during the pandemic. D. Miller provided an overview of the TD summer reading club 2021, equity, diversity and inclusion programming, truth and reconciliation initiatives, future plans, and congratulated the winners of the 2022 Bookmark contest.

Members of Council asked questions regarding the number of 2022 Bookmark submissions received, criteria used to select panel discussion participants, number of panel discussions this year, and events planned for Ajax Public Library's 70th birthday next year. S. Vaisler responded to questions from Council Members.

On behalf of Council, Mayor Collier thanked Mr. Miller and S. Vaisler for the presentation.

5.5 **Presentation: Durham's Homelessness Support and Coordinated Access System**

Erin Valant, Program Manager of Affordable Housing and Homelessness Initiatives, Region of Durham, delivered a presentation on Durham's homelessness support and coordinated access system. E. Valant reviewed Durham's point in time counts, Durham's coordinated access system, By-Name List data, Built for Zero Report Card, 2021 initiatives and strategies, and homelessness funding in Durham.

Council Members asked questions regarding rationale for the high percentage of actively homeless males, return to homelessness processes, inception of the By-Name List, alternative housing options for homeless shelters and opportunities to implement a hotel program, outreach initiatives, wait times for shelters in Durham Region, and compliance requirement obligations for regionally funded shelters.

On behalf of Council, Mayor Collier thanked E. Valant for her presentation.

5.6 **Presentation: Envision Durham Update**

Colleen Goodchild, Manager, Policy Planning and Special Studies, Region of Durham, provided an overview of the Envision Durham project. C. Goodchild reviewed the planning policy hierarchy in Ontario, policy review approach, engagement and outreach, theme-based discussion papers, proposed policy directions, protected major transit station areas, the growth management study process, employment area conversion requests, proposed urban boundary expansions, and next steps.

DRAFT

Council Members asked questions regarding the Region's position on employment area conversion request recommendations submitted by the Town, rationale for reduced employment density targets, urban settlement land needs, and opportunities to provide incentives to vacant land owners to accommodate affordable housing developments. C. Goodchild responded to questions from Council Members.

On behalf of Council, Mayor Collier thanked C. Goodchild for her presentation.

5.7 **Presentation: Investment Strategy**

Kelly Rodgers, Rodgers Investment Consulting (RIC), delivered a presentation regarding investment strategies for the Town of Ajax. K. Rodgers discussed cash flow forecasts and allocations, investment strategies and risk tolerance, risk mitigation, recommendations, and investment policy allocations.

Council Members asked questions regarding ONE Investment return rates, current rate of return on investments, opportunities to customize the Town's equity portfolio, overall investment performance compared to other municipalities, timelines associated with implementation of the Prudent Investor Regime, risks associated with long term bond portfolios, balanced funds, and Prudent Investor Regime fees. Dianne Valentim, Director of Finance/Treasurer, and K. Rodgers responded to questions from Council Members.

On behalf of Council, Mayor Collier thanked K. Rodgers for her presentation.

5.8 **Presentation: Support Local Procurement Policy**

Bill O' Driscoll, Manager of Purchasing, delivered a presentation reviewing the contents of the written report and recommendations contained therein. B. O'Driscoll discussed opportunities available to the municipality including local/regional supplier outreach and education initiatives, local cooperative procurement initiatives, and opportunities to aggregate similar types of purchases and establish local contracts not exceeding the Town's threshold. B. O' Driscoll reviewed recommendations from legal counsel.

Council Members asked questions regarding opportunities to engage with local businesses and social procurement. B. O'Driscoll responded to questions from Council Members.

Council recessed at 9:48 p.m.

Council resumed at 10:00 p.m.

6. Correspondence

Members separated correspondence items 6.5, 6.8, 6.12, 6.15 and 6.16 for discussion.

Moved by: R. Tyler Morin
Seconded by: A. Khan

That the balance of the report (Items 6.1, 6.2, 6.3, 6.4, 6.6, 6.7, 6.9, 6.10, 6.11, 6.13 and 6.14) dated November 22, 2021 containing Items of Correspondence be received for information.

CARRIED

DRAFT

Mayor Collier vacated the Chair. Regional Councillor Lee assumed the Chair.

Item 6.5

Moved by: S. Collier
Seconded by: M. Crawford

That Item 6.5 (Town of Whitby - Provincial Funding for Municipal By-law Enforcement Costs related to Proof of Vaccination Policy) of the Correspondence Report be endorsed.

CARRIED

Items 6.8 and 6.12

Moved by: S. Collier
Seconded by: A. Khan

That Items 6.8 ("City of Oshawa – Request that the Province Implement Legislation Related to Excessive Vehicle Noise") and 6.12 ("Ontario Good Roads Association – Modified Exhausts and Noisemakers") of the Correspondence Report be endorsed.

CARRIED

Item 6.15

Council Members discussed the motion and historical OMERS's investment performance including average rate of return.

Moved by: S. Collier
Seconded by: L. Bower

That Item 6.15 ("CUPE Ontario – Concerns with OMERS' Investment Performance") of the Correspondence Report be received for information.

CARRIED

Item 6.16

Council Members discussed the correspondence, the direction provided to staff to proceed with a detailed design for Lower Harwood Avenue, and public consultation and rationale for changes to the bike lanes.

Moved by: S. Collier
Seconded by: L. Bower

That Item 6.16 ("Clarington Cycling Club – Removal of Bike Lanes on Harwood Avenue") of the Correspondence Report be received for information and that the Mayor write a letter of response to the Clarington Cycling Club.

CARRIED

Mayor Collier resumed the Chair.

DRAFT

7. Reports

7.1. Community Affairs & Planning Committee Report

7.1.1 Community Affairs & Planning Committee, November 8, 2021

Moved by: A. Khan
Seconded by: R. Tyler Morin

That the Community Affairs & Planning Committee Report dated November 8, 2021 be adopted.

CARRIED

7.2. General Government Committee Report

7.2.1 General Government Committee, November 15, 2021

Moved by: L. Bower
Seconded by: R. Tyler Morin

That the General Government Committee Report dated November 15, 2021, be adopted.

CARRIED

7.3 Summary of Advisory Committee Activities

Moved by: S. Lee
Seconded by: S. Dies

That the Summary of Advisory Committee Activities Report dated November 22, 2021, as attached to the meeting agenda be received for information, and that the recommendations contained therein be referred to staff where applicable.

CARRIED

7.4 Departmental Reports

7.4.1 APL-2021-03: Library Services Fall 2021 Update

Moved by: A. Khan
Seconded by: M. Crawford

That the Library Services 2021 Fall Update be received for information.

CARRIED

7.4.2 FIN-2021-20: Investment Strategy

Moved by: R. Tyler Morin
Seconded by: L. Bower

1. That Staff be directed to proceed with investing with the ONE Investment program option;

DRAFT

2. That Council authorize the Director of Finance/Treasurer or designate(s) to complete all documentation necessary to join the ONE Investment Program;

3. That the proposed amendments to the current Investment Policy, as outlined in ATT-2, be approved;

4. That the draft By-Law included as ATT-4 to this report be adopted at a meeting of Council.

CARRIED

Recorded Vote

In Favour: Regional Councillor Crawford, Regional Councillor Dies, Councillor Khan, Regional Councillor Lee, Councillor Tyler Morin, Councillor Bower, Mayor Collier

Opposed: None

7.4.3 **FIN-2021-22: Support Local Procurement Policy**

Moved by: M. Crawford
Seconded by: L. Bower

1. That Council receive this report for information; and

2. That the Manager of Purchasing collaborate with the Manager of Economic Development to develop and implement a comprehensive local supplier education program.

CARRIED

8. Regional Councillors' Report

Regional Council Members noted that loud car exhaust motions are gaining popularity across the Region. Members noted an increase in car accidents involving teenagers on municipal roads and a shortage of truck drivers impacting the Region's waste collection services. Members provided an update on the COVID-19 pandemic including vaccination rates, reduced positivity rates, risks for unvaccinated individuals, and herd immunity. Members noted that children aged 5-11 years old are now eligible for the vaccine.

Moved by: J. Dies
Seconded by: A. Khan

That the Regional Councillors' Reports of November 22, 2021 be received for information.

CARRIED

9. Business Arising from Notice of Motion

9.1 Reducing Litter at 'Super' Community Mailboxes

Mayor Collier vacated the Chair. Regional Councillor Crawford assumed the Chair.

DRAFT

Regional Councillor Lee and Mayor Collier introduced the motion and reviewed its contents. Council Members asked questions regarding methods to mitigate waste created by advertising flyers. Regional Councillor Lee and Mayor Collier responded to questions on the motion from Council Members.

Moved by: S. Lee
Seconded by: S. Collier

WHEREAS Canada Post is responsible for approximately 1,000 neighborhood community mailboxes (CMBs) and 30 'super' CMBs in Ajax.

AND WHEREAS there have been increased complaints of litter in the vicinity of 'super' CMBs;

AND WHEREAS unwanted advertising (squeezed between mailboxes, jammed into outgoing mail slots and carelessly discarded around mailboxes) increases when a large number of community mailboxes are grouped together as in the case of the 'super' sites;

AND WHEREAS Canada Post only maintains the sites of CMBs (including picking up litter) on a complaint or as-needed basis, and have indicated that they will not provide recycling containers at the mailboxes, opting instead to encourage residents to bring unwanted mail home;

AND WHEREAS a number of municipalities (including Markham and Richmond Hill) have incurred the expense of providing recycling pick-up services at CMBs to reduce the litter created by unwanted flyers, etc.;

NOW THEREFORE BE IT RESOLVED THAT:

1. Operations & Environmental Services staff be directed to:

    a. design a pilot recycling program for the 'super' community mailboxes in Ajax;

    b. report to General Government Committee in January 2022 with program details (service levels, resources, etc.) and other associated costs for consideration as part of the 2022 operating budget; and

    c. discuss the potential of the Region of Durham piloting the pickup of the recyclables as part of their weekly residential collection schedule.

2. The Mayor send a letter to Canada Post requesting that they immediately repair damaged mailboxes and work with staff to resolve increasing litter issues at CMBs;

3. Corporate Communications be directed to execute a specific anti-litter campaign for CMBs, including a dedicated webpage, educational material, and anti-litter signage at sites; and

4. A copy of this motion be shared with Canada Post, the Region of Durham, and all Durham Region MPs.

CARRIED

DRAFT

Recorded Vote

In Favour: Regional Councillor Lee, Councillor Bower, Mayor Collier, Councillor Khan

Opposed: Councillor Tyler Morin, Regional Councillor Dies, Regional Councillor Crawford

Mayor Collier resumed the Chair.

9.2 **Reading of Land Acknowledgement at GGC and CAP Meetings**

Councillor Bower and Councillor Khan introduced the motion and reviewed its contents.

Moved by: L. Bower
Seconded by: A. Khan

WHEREAS since 2017, Council of the Town of Ajax has begun its Council meetings with an acknowledgement of traditional treaty lands;

AND WHEREAS a land acknowledgement is an act of reconciliation to recognize the traditional territory of Indigenous peoples, and has been adopted as a practice to begin public meetings and events in civic and community spaces across Canada;

AND WHEREAS Council also holds regular General Government Committee (GGC) and Community Affairs and Planning Committee (CAP) meetings on a monthly basis;

AND WHEREAS Council deems it appropriate to acknowledge traditional treaty lands at its GGC and CAP meetings;

NOW THEREFORE BE IT RESOLVED THAT staff be directed to bring forward amendments to Council's procedure by-law at a future meeting of Council to provide for the acknowledgement of traditional treaty lands at all future General Government Committee and Community Affairs and Planning Committee meetings.

CARRIED

Recorded Vote

In Favour: Councillor Bower, Regional Councillor Crawford, Regional Councillor Dies, Councillor Khan, Regional Councillor Lee, Councillor Tyler Morin, Mayor Collier

Opposed: None

9.3 **Review of Fireworks By-law**

Regional Councillor Lee and Regional Councillor Crawford introduced the motion and reviewed its contents.

Moved by: S. Lee
Seconded by: M. Crawford

WHEREAS the Town's existing Fireworks By-law was last reviewed and updated in 2005;

DRAFT

AND WHEREAS the existing Fireworks By-law limits the permitted sale and discharge of consumer fireworks to a small number of statutory holidays;

AND WHEREAS Council deems it necessary for the Town to conduct a review of the Fireworks By-law through a diversity and inclusion lens;

NOW THEREFORE BE IT RESOLVED:

1. **THAT** Fire Department staff and the Town's Diversity & Inclusion Coordinator be directed to undertake a comprehensive review and update of the Town's Fireworks By-law, and report back to Council or the appropriate standing committee no later than May 2022; and

2. **THAT** such review shall include, but not be limited to, the following:

    a. Consideration of whether the list of holidays on which consumer fireworks may be sold under a permit, or discharge, should be expanded;
    b. Consultation with the By-law Services division and the Diversity & Inclusion Coordinator;
    c. Examination of best practices and comparable by-laws among Durham Region and other GTA municipalities; and
    d. A public consultation element to obtain public input on proposed changes to the By-law.

CARRIED

10. By-laws

Members of Council asked questions regarding By-law 77-2021, Part Lot Control By-law (PLC4/2021), Daste Subdivision, 86 Condominium Block Townhouse dwelling units on Block 5 of 40M-2682. Geoff Romanowski, Director of Planning & Development Services, responded to questions from Council Members.

Moved by: R. Tyler Morin
Seconded by: J. Dies

That By-law numbers 70-2021 to 77-2021 be read a first, second and third time and passed.

CARRIED

11. Notice of Motion

None

12. New Business - Notices & Announcements

Members of Council highlighted upcoming events and activities including a drive-by Santa Claus Parade on Saturday, November 27, 2021, a Ward 2 community meeting on Tuesday, November 23, 2021, International Men's Day on November 19, 2021, a Public Information Session regarding the Automated Speed Enforcement Program on Tuesday, November 30, 2021, and Live with Mayor Collier on Tuesday, December 7, 2021.

DRAFT

13. Confirming By-Law

Moved by: L. Bower
Seconded by: A. Khan

That By-law number 78-2021 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its meeting held on November 22, 2021 be read a first, second and third time and passed.

CARRIED

14. Adjournment

Moved by: M. Crawford
Seconded by: R. Tyler Morin

That the November 22, 2021 meeting of the Council of the Town of Ajax be adjourned (10:56 p.m.)

CARRIED

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Mayor

_____
D-Clerk

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